

		thereafter, on 2/24/26. Plaintiff does not show that Defendants acted inconsistently with an intent to arbitrate, such as by engaging in extensive discovery, filing substantive motions, or posting jury fees. Accordingly, Plaintiff has not demonstrated that Defendants waived their right to compel arbitration. In sum, the court GRANTS Defendants’ motion to compel arbitration. The court also VACATES the 11/23/26 jury trial and STAYS this action pending resolution of the parties’ arbitration. (Code Civ. Proc., § 1281.4.) The court sets a Status Conference re Arbitration for November 16, 2026 at 9:00 am, in Dept. W8. Plaintiff’s counsel SHALL file and serve a status report regarding the arbitration <u>no later than 10 court days prior</u> to the hearing. Defendants to give notice.
18	Wong vs. Makhail	<u>Demurrer (re Third Amended Complaint) (x2)</u> <u>Motion to Strike</u> <u>Motion to Be Relieved as Counsel of Record (x2)</u> The operative pleading is the Third Amended Complaint (“TAC”), which contains a single cause of action for “invasion of privacy through publication of private facts and false light publicity”, asserted against all defendants. Plaintiffs’ opposing briefs (ROAs 427, 429) are unhelpful. The briefs fail to state whether they are responding to the demurrer/motion to strike brought by Defendant Makhail or Defendants Powerstone and Mourer, or both. More importantly, Plaintiffs appear to be responding to arguments not made in any of the moving papers (e.g., statute of limitations, standing, sham pleading) and claims not made in the TAC (e.g., fraud, IIED, NIED).